h) If the Borrower is an **individual**, the Borrower shall:

i) Intimate and instruct his/her employer to transfer every month from the Borrower's salary and emoluments a specific sum (being the EMI) towards the repayment of the Loan, to the Bank. The Borrower confirms that the Bank shall have the authority to approach the Borrower's employer directly for repayment of EMI and/or any other charges/sum due from the Borrower to the Bank;

ii) Notify the Bank of any change in the Borrower's employment, business, profession or residential address;

2. Negative Covenants

a) The Borrower shall not, during subsistence of the Loan:

i) Enter into any borrowing arrangement (secured or unsecured) without written permission of the Bank. ii) Undertake any guarantee obligation on behalf of anybody. iii) Shall not sell, mortgage, lease, surrender or otherwise howsoever alienate, encumber or create any third party interest in respect to any of his/her/its assets without express permission from the Bank.

iv) Repay the loans/advances raised from friends and relatives. v) Pay commission to guarantors.

b) If the Borrower is a **company or a one person company**, the Borrower shall not:

i) Take any corporate governance actions such that borrowing of the Loan becomes illegal.

ii) Make any change in the constitution, management or existing ownership or control or share capital of the Borrower without the prior consent of the Bank.

iii) Enter into a reconstruction or arrangement or merge or amalgamate with any other company or body corporate.

iv) Amend its memorandum of association and articles of association.

v) Make any reference to the Corporate Debt Restructuring Cell, National Company Law Tribunal or National Company Appellate Law Tribunal or any other forum or any other statutory body or for initiation of insolvency resolution process under the IBC or to restructure its constitution/ debt or rehabilitate/ reconstitute the Guarantor and/or its management;

c) If the Borrower is a **partnership or LLP**, the Borrower shall not:

i) Dissolve the partnership or enter any new partners to the firm or make any change in its constitution; ii) Alter the partnership deed.

d) If the Borrower is a **sole proprietorship**, the Borrower shall not:

i) Make any change to its constitution, business, management, ownership or control; ii) Amend its constitutional documents.

e) If the Borrower is an **individual**, the Borrower shall not leave India for employment or business or stay on a long term during the tenure of the Loan.

3. Representations and Warranties

a) If the Borrower is a **company or a one person company**:

i) The Borrower is a company, duly incorporated and validly existing under the law of its country of incorporation.

ii) All necessary approvals for availing the Loan have been obtained, including but not limited to the resolutions of the board of directors and shareholders of the Borrower, as applicable and that the Borrower will at all times till the full repayment of the Outstanding Obligations to the Bank, keep all such approvals valid and subsisting.

iii) There has been no Material Adverse Effect on the financial condition of the Borrower, nor has any event which is prejudicial to the interest of the Bank taken place since the date of latest audited financials of the Borrower.

iv) No director/member of the Borrower has been declared to be a Wilful Defaulter.

b) If the Borrower is a **partnership or LLP**:

i) No partner/managing partner has been declared to be a Wilful Defaulter.

ii) No HUF is a partner in the Borrower. iii) The partners who have signed the Agreement and the other Transaction Documents are the only partners of the Borrower.

c) If the Borrower is a **sole proprietorship:**

i) The sole proprietor has not been declared a Wilful Defaulter.

ii) He/she is the sole proprietor of the Borrower and is solely responsible for the liabilities of the firm and is personally for performance of all obligations of the Borrower under the Transaction Documents. d) If the Borrower is an **individual:**

i) The Borrower has not been declared a Wilful Defaulter.

4. Events of Default

a) In case the Borrower is a **company or a one person company**:

i) If the Borrower becomes subject to proceedings for taking it into liquidation, whether voluntarily or compulsorily, may be or have been commenced or if any resolution for voluntary winding-up is passed or if an order of a court of competent jurisdiction is made or the Borrower suspends payments or announces